FIELD GUIDE 05 · SCIENCE, STEM & RESEARCH

EB-1A for Scientists

THE RESEARCHER'S BLUEPRINT

A premium guide for academic and industry researchers, engineers, and STEM professionals

AiVass

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The Researcher's Blueprint

For academic and industry researchers, engineers, and STEM professionals building a **self-petitioned extraordinary ability case**.

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CHAPTER

01

The Field the Rules Were Written For

Which is exactly why so many scientists file badly.

The ten criteria at 8 C.F.R. § 204.5(h)(3) read like a research CV because, in large part, that is what they were modeled on. Scholarly articles. Judging the work of others. Original contributions of major significance. If you are an academic scientist, the doors are already open.

That advantage becomes a trap. Because the criteria fit so naturally, STEM petitioners file **the CV itself** — a publication list, an h-index, a stack of letters — and assume the numbers speak. They do not. USCIS says so directly: publication, patents, and funding may establish that work is **original**, but **"will not necessarily establish, on its own"** that it is of major significance. And an h-index submitted without its methodology is not evidence; it is a number.

What the category offers a research career

- **Self-petition.** No university, no PI, no employer. You file your own Form I-140.
- **No job offer, no PERM.** The Policy Manual confirms an EB-1A petition "does not need to be supported by a job offer."
- **Independence.** For postdocs and H-1B researchers whose status is chained to one lab or one company, this is the entire proposition.
- **First preference.** Current for most countries — and for Indian and Chinese nationals, years ahead of EB-2 (Chapter 10).

Who this guide is for

- Academic researchers: postdocs, research scientists, faculty at any rank.
- Industry researchers and applied scientists at corporate labs.
- Engineers whose contributions ship as products, systems, or standards rather than papers.

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- Data scientists, ML researchers, and computational scientists.
- Clinical researchers, biostatisticians, and translational scientists.
- Founders of deep-tech and research-driven startups (read Field Guide 01 alongside this one).

The two profiles, and their opposite problems

The academic	The industry researcher
Has: publications, citations, peer review, conference talks.	Has: deployed systems, patents, revenue impact, equity, scale.
Missing: context. A citation count with no field baseline. An h-index with no methodology. Venues with no quartile.	Missing: the traditional criteria. Few or no papers, no peer review, no academic memberships.
Fails at: Step 2, on major significance and top-of-field standing.	Fails at: Step 1, by never arguing comparable evidence.
Fix: quantify the denominator (Chapter 5).	Fix: build the comparable-evidence bridge (Chapter 8).

Strategy note — the September 2023 update

USCIS published guidance specifically addressing STEM evidence and comparable evidence, and listing final-merits factors that read like a research scorecard: publication in high-impact venues, citation rates relative to the field, positions at leading institutions, unsolicited invitations to speak, and being named on competitive U.S. government grants. That list is not a suggestion. It is the outline of your final-merits section (Chapter 9).

The bottom line

The criteria fit you. That is the danger. A CV is not a petition — context, comparison, and significance are what convert one into the other.

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YOU'VE SEEN THE PREVIEW

Unlock the full EB-1A for Scientists

This preview shows 5 of 44 pages. The complete guide gives you every criterion in depth, the evidence-mapping framework, the filing and fees breakdown, the expert annex, and the full self-assessment scorecard.

The full guide includes:

- Every one of the ten criteria, explained as USCIS actually applies them
- The evidence-mapping method: turn scattered achievements into proof
- A 30 / 90 / 180-day evidence sprint you can start today
- Filing, fees, and Visa Bulletin timing — with a dated snapshot
- The expert & B2B annex: intake, QC checklist, RFE risk register
- A scored self-assessment to know exactly where you stand

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